

24NWCV01043 24NWCV01043

County: los-angeles

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Case Number: 24NWCV01043 Hearing Date: July 28, 2026 Dept: R

#17

CISNEROS, ET AL. v.

WHITTIER CITY SCHOOL DISTRICT, ET AL.

CASE NO.: 24NWCV01043

HEARING: Tuesday,

July 28, 2026, at 9:30 AM

I.

Plaintiff AGUSTINA CISNEROS Motion to Quash

Subpoenas for Production of Business Records Served on Plaintiff's Medical Providers is GRANTED.

II.

Plaintiff AGUSTINA CISNEROS Motion to Quash

Subpoenas for Production of Business Records Served on Plaintiff's Medical Providers is GRANTED.

III.

Plaintiff AGUSTINA CISNEROS Motion to Quash

Subpoenas for Production of Business Records Served on Plaintiff's Medical Providers is GRANTED.

Moving Party to give notice.

Background

On April 4, 2024, Plaintiffs AGUSTINA CISNEROS and MICHAEL CHAVARRIA-CISNEROS filed this Motor Vehicle action against Defendants WHITTIER CITY SCHOOL DISTRICT ("Defendant"); ROBERTO PETER PINEDA; and DOES 1 to 20, inclusive.

Plaintiffs allege, "On or about April 12, 2024, Plaintiffs AGUSTINA CISNEROS and MICHAEL CHAVARRIA-CISNEROS were lawfully stopped while operating their motor vehicle, southbound on Workman Mill Rd. in lane #1, at or near the intersection of Workman Mill Rd. and North Drive in or near the City of Whittier, in the County of Los Angeles, in the State of California, when Defendant ROBERTO PETER MEDINA, while in the course and scope of his employment with Defendant WHITTIER CITY SCHOOL DISTRICT, and DOES 1 to 20, inclusive, negligently and carelessly failed to keep a proper lookout and negligently and carelessly operated their vehicle at excessive speeds so as to cause this collision between Defendant's vehicle and Plaintiffs' vehicle. Defendants ROBERTO PETER MEDINA, and DOES 1 to 20, inclusive, and each of them, caused their vehicle forcefully and violently collided with the rear of Plaintiffs AGUSTINA CISNEROS and MICHAEL CHAVARRIA-CISNEROS' vehicle, resulting in injuries and damages to Plaintiffs." (Complaint at p. 4.)

Plaintiff now moves to quash deposition subpoenas served on Plaintiff AGUSTINA CISNEROS' ("Plaintiff") medical providers.

Motion to Quash

"If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b),... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. (CCP §1987.1(a).)

Plaintiff filed three different motions to quash deposition subpoenas. For the ease of Court and Counsel, the Court will reference each motion by Reservation ID.

Plaintiff contends these deposition subpoenas are overbroad and infringe on Plaintiff's right to privacy.

Privacy

In ruling on a privacy objection, the party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (Williams v. Sup. Ct. (2017) 3 Cal. 5th 531, 552.) The party asserting a privacy right must also establish an objectively reasonable expectation of privacy in the given circumstances. (Id.) "The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (Id.)

The subpoena at issue generally seek Plaintiff's medical records. For instance, Subpoena to the Custodian of Records for Emanate Health Queen of the Valley Hospital seeks the following: "Any and all medical documents, paper and digital records pertaining to the care, treatment and examination of Agustina Cisneros born on 3/23/1981, with SS# Unk.; including, but not limited to, all office, emergency room, inpatient and outpatient charts and records either in hard copy or electronic and/or faced from any and all dates. Including all electronic communications from and to the patient. (Plaintiff's Separate Statement at p. 2.)

"It is settled that a person's medical history, including psychological records, falls within the zone of informational privacy protected under Section 1." (People v. Martinez (2001) 88 Cal.App.4th 465, 474-475.) Thus, before the discovery will be allowed, the opposing parties must identify what legitimate and important interests would be served by the disclosure.

Here, the Court agrees with Plaintiff that broad reaching subpoenas of Plaintiff's medical records violate her right to privacy. Indeed, the Court finds Defendant can limit its request to body parts Plaintiff alleges to have sustained injury to.

Furthermore,

Defendant's request for medical records from the past 10 years is overbroad and unnecessary. The Court finds it more appropriate for Defendant to request medical records from the past 5 years.

Plaintiff's Motion

to Quash is GRANTED.

Reservation ID:

715177170748

Non-Party Medical
and Billing Records

Any party may obtain any discovery of information, documents, land, property or electronically stored information so long as the discoverable matter is not privileged, is relevant to the subject matter and can lead one to admissible evidence. (CCP § 2017.010.)

Defendant contends the documents sought are necessary to assess the "reasonableness of Plaintiff's medical expenses." The Court disagrees.

The Court does not find that non-party records are relevant to any claim or defense in this action. Moreover, Defendant does not need non-party's records to determine if Plaintiff's medical expenses were reasonable. Instead, Defendant can rely on evidence of referral agreements or ask an expert to evaluate Plaintiff's claimed expenses.

Referral Evidence

Defendant's request for patient referrals by BD&J is relevant. Indeed, referral evidence is relevant because it may show bias or financial incentives on the part of lien-physicians. (Qaadir v. Figueroa (2021) 67 Cal.App.5th 790, 808.) The Court further finds that any privacy issues are mitigated by deleting any identifying information within these referral requests.

Attorney Client

Privilege

The

attorney-client privilege authorizes a client to refuse to disclose, and to prevent others from disclosing, confidential communications between attorney and client. (Mitchell v. Superior Court (1984) 37 Cal. 3d 591, 599.) The evidentiary privilege, while not constitutionally based, is the oldest recognized confidential communication privilege. (Sullivan v. Superior Court (1972) 29 Cal.App.3d 64, 71.) The privilege applies not only to communications made in anticipation of litigation, but also to legal advice when no litigation is threatened. (Roberts v. City of Palmdale (1993) 5 Cal.4th 363, 371.) The term “confidential communication” is broadly construed, and defined as either information transmitted between a client and his lawyer or advice given by the lawyer. The privilege does not protect independent facts related to a communication, that a communication took place, and the time, date and participants in the communication. Further, the privilege does not protect disclosure of underlying facts which may be referenced within a qualifying communication, and it does not extend to independent witnesses. (State Farm Fire & Casualty Co. v. Superior Court (1997) 54 Cal.App.4th 625, 639-640.)

Here, none of the requests seek communications between Plaintiff and Counsel and thus attorney-client privilege is inapplicable.

Work-Product

Writings containing attorney impressions, conclusions, and opinions are absolutely protected. (Code Civ. Proc. § 2018.030(a).) Other work product is subject to qualified protection—that is, the information is discoverable if “denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (CCP. § 2018.030(b).)

The Court does not find the work-product doctrine is implicated as the subpoena seeks documents belonging to and prepared by medical entities and not attorneys.

Conclusion

Plaintiff's Motions

to Quash are GRANTED.

Defendant may

modify its subpoena and seek documents related to referrals/referral agreements by BD&J and communications related to those referrals. Defendant may not subpoena medical or billing records of other patients.

Defendant may also

limit its medical subpoena to injuries Plaintiff has placed at issue and limit the request to records from 2021 onward.

[1]

Plaintiff asserts identical arguments in these two motions to quash. Thus, the Court rules on these two motions together.